Discipline Practices and Racial Equity in Schools

Mapping Restorative Justice in Minnesota Schools

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Background

Researchers and government education agencies have documented racial biases in school discipline. Punitive discipline practices reduce school attendance, increase drop-out rates and lower academic achievement of racial minorities. Educators and researchers are proposing alternative practices to mitigate the negative effects of unequal discipline. A literature review were conducted using U.S. Department of education, MN Department of Education, and other academic research data. **These three themes emerged: Implicit Bias, Punitive Discipline, and Restorative Justice.**

Research Questions

- What influences racial disparities in school discipline?
- What are the effects of punitive discipline on Minnesota K-12 students' academic achievement?
- What are the evidence based alternatives to traditional punitive discipline practices, specifically studies of restorative justice?

Implicit Bias

Definition: The automatic and unconscious stereotypes that drive people to behave and make decisions in certain ways (Gilliam et. al., 2016).

Evidence:

- In a Yale University study, 135 early care/education professionals watched 12 30-second clips composed of 4 children participating in structured class activities; results showed they "tend to observe more closely Blacks, and especially Black boys when challenging behaviors are expected". Of the early childhood educators, 42% chose Black boys as needing the most attention (Gilliam et. al., 2016).
- Adults regularly "perceive that Black girls need less nurturing…less protection…to be supported less…to be comforted less…are more independent…know more about adult topics…know more about sex." These perceptions of "Black girls as less innocent may contribute to harsher punishment by educators and school resource officers" (Epstein et. al., 2017).
- Adults misperceive Black boys, who are as young as 10, as "older, viewed as guilty of suspected crimes, and face police violence if accused of a crime" (Epstein et. al., 2017).

Impact:

- Implicit bias contributes to stereotyping that leads to unjust punishment, which leads to low academic performance in racial minorities (Epstein et. al., 2017; Gilliam et. al., 2016).
- Teachers' subconscious response to classroom behavior based on sex and race contributes to greater "identification of challenging behaviors with Black preschoolers and especially Black boys, thus contributing to racial disparities in preschool suspension and expulsion" (Gilliam et. al., 2016).

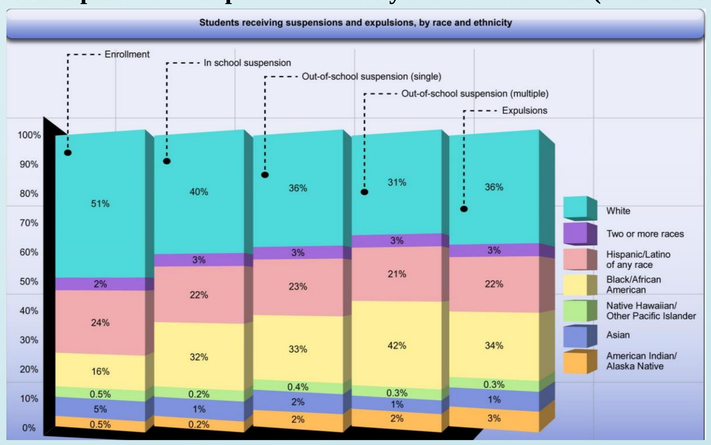


Punitive Discipline & Racial Disparities

Definition: A school professional issues "office discipline referral and send[s] student[s] to the administrators' office for perceived misbehavior. Administrators will typically assign a consequence, usually in the form of suspension" inside and outside of the school (Gregory et. al., 2014).

Evidence:

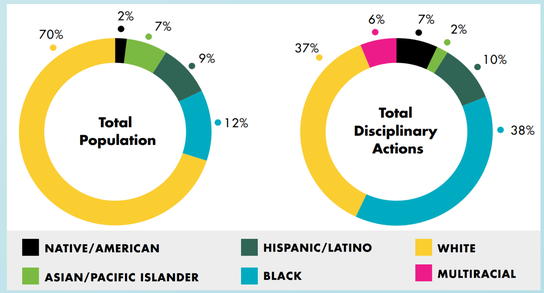
U.S. Suspension & Expulsion Rates by Race: Pre-K - 12 (2011 - 2012)



- This disparity begins at an early age: Black children represent 18% of preschool enrollment but 48% of out-of-school suspensions. White students represent 43% of preschool enrollment but only 26% of out-of-school suspension (Duncan et. al., 2014). At all ages students of color receive more suspensions than their white peers.

Minnesota State Discipline Rates by Race: Pre-K - 12 (2011 - 2012)

Data from Minnesota Department of Education



- U.S. Department of Education (2014) found examples of unfair discipline in Minneapolis Public Schools, such as assigning a white 9th grade student to "an alternative instruction room for play fighting, but a one-day, out-of school suspension to a black 10th grade student for the same offense".

Impact:

- Students receiving punitive discipline have higher rates of academic failure and dropout (Rivera et. al., 2016 ;The Pyramid Project).
- Lower attendance rates due to suspension and expulsion also impact school and district funding because they are tied to state assistance dollars based on Average Daily Attendance (ADA) (Morgan et. al., 2014).
- Unjust disciplinary consequences are frequently traumatizing for young people, leading to public humiliation, diminished self-worth, and distrust of school officials (Anderson et. al., 2014).

Restorative Justice

Definition: Involves inviting affected stakeholders to dialogue to figure out how to repair the harm done. Restorative justice (RJ) is based on reintegration, inclusion, community building, and problem-solving skills (Rivera et. al., 2016). Types of RJ discipline: Community conference, circles, community service, peer juries/mediation, and preventative and conflict resolution programs.

Evidence from programs around the U.S.

- An assessment of the Peace Center conducted by Roosevelt University's Mansfield Institute found that "students are attending classes more and taking greater interest in their education". The Peace Center has made it possible for administrators at Wells Community Academy HS to reduce their use of suspensions (Morgan et al., 2014).
- Evidence from programs in California, Virginia, and Texas show major decreases in suspensions and increases in student affinity with school (Morgan et al., 2014).
- The My Teaching Partner-Secondary (MTP-S) professional development program for teacher RJ training has been proven to reduce teacher reliance on traditional punitive discipline. Schools using this method have seen decreased referrals of Black students (Gregory et al, 2014).

Evidence from Minnesota

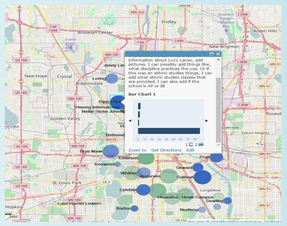
- Five Minnesota school districts received an RJ grant (2001-2002), followed by a 63% reduction in suspension at Nellie Stone Johnson HS and 45% reduction at Ramsey Fine Arts HS (Riestenberg, 2003).
- The Minnesota River Valley district implemented RJ in 2016. Of the 25 students referred; 85% of the violators followed through with their agreements, and 80% showed improved behaviors (Cherveny, 2017).
- In a separate Minneapolis Public Schools study there were significant decreases in referrals. Students on track to graduate doubled 20% to 40% when RJ was implemented (Rivera et al., 2016).

Future Directions

Mapping RJ practices in Minnesota schools is the ongoing research for the 2017 – 2018 school year. We will collaborate with the Minnesota Department of Education (MDE) to survey educators about their involvement with RJ in their schools. An interactive map will be created to show users where and in what ways RJ is being implemented across the state, and by how many teachers or districts.

Future Research Questions:

- How widespread is restorative justice in K-12 education in the state of Minnesota?
- How many schools provide teacher training in restorative justice discipline practices?



Minnesota Department of Education